



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: UDC-23-00016 and UDC-23-00016-01 – County Pocket #1, Zoning
Date: February 27, 2023

Background:

The item for consideration is a *Zone Change*. This is approved by ordinance. This zoning map amendment is City-initiated in conjunction with a City-initiated annexation. City zoning districts are established in conjunction with annexation.

The proposed Governing Body review schedule is as follows:

- Introduction and referral February 27, 2023
- Public Services Committee: March 7, 2023
- Second Reading: March 13, 2023
- Public Services Committee: March 21, 2023
- Third and Final Reading: March 27, 2021

Staff evaluated the development pattern of the area, sought input from landowners, and utilized PlanCheyenne's Future Land Use Plan to determine appropriate zoning districts for the area. Representatives of four of the five properties contacted staff seeking specific zones. Requested zones were CB Community Business, MUB Mixed Use Business, and LI Light Industrial. The CB and MUB District requests are included in the ordinance since they comply with the Future Land Use Plan and are compatible with the neighborhood. The LI zoning request has not been incorporated due to its proximity to residences, a school, and not being in accordance with PlanCheyenne.

The Planning Commission considered establishment of CB Community Business and MUB Mixed Use Business at their February 6 and 27, 2023, meetings and have recommended the Governing Body approve that zoning for the area. The items were heard on different dates because a property owner requested MUB instead of the CB zone presented at the initial public hearing. The February 6, 2023, and February 27, 2023, staff reports are both attached.

The Planning Commission recommendation is to approve the establishment of CB and MUB zoning as reflected in the staff reports and ordinance.

Attachments:

1. Ordinance
2. Zone Change Map (County MU to MUB and CB)
3. February 6, 2023, Planning Commission Staff Report and attachments
4. February 27, 2023, Planning Commission Staff Report and attachments

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY MU MIXED USE TO MUB MIXED-USE BUSINESS EMPHASIS AND CB COMMUNITY BUSINESS FOR TRACTS OF LAND SITUATED IN PORTIONS OF SUNNY SIDE ADDITION AND SUNNYSIDE ADDITION SECOND FILING, SECTION 12, T. 13 N., R. 67 W., 6TH P.M., LARAMIE COUNTY, WYOMING, GENERALLY LOCATED EAST OF RIDGE RD. BETWEEN CHARLES ST. AND PERSHING BLVD., WEST OF WILLS RD. BETWEEN CHEYENNE ST. AND PERSHING BLVD., AND NORTHEAST OF THE INTERSECTION OF PERSHING BLVD. AND WILLS RD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That City staff has petitioned Governing Body for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”) in accordance with their 2022 goal to annex County pockets.

Section 2. That on February 6, 2023, and February 21, 2023, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zone changes that are the subject of this ordinance, and recommended approval of said zone changes.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as:

All of tracts 3, 4, Sunny Side Addition is hereby changed to MUB Mixed-use Business Emphasis and All of tracts 13, 16, Sunny Side Addition and portions tracts 17 and 18, Sunnyside Addition, Second Filing be more particularly described as follows: beginning at the southwest corner of said tract 17; thence N. 01°01' 50" W. along the west line of said tract 17 and the east line of Wills Road a distance of 196.64 feet to a point; thence S. 85°31'04" E. a distance of 131.68 feet to a point; thence S. 00°01'47" E. a distance of 46.81 feet to a point; thence S. 89°45'00" E. a distance of 168.73 feet to a point; thence S. 01°01'47" E. 140.11 feet to a point on the north line of Pershing Boulevard; thence N. 89°45'00" W. along the said north line a distance of 300.00 feet to the point of beginning is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

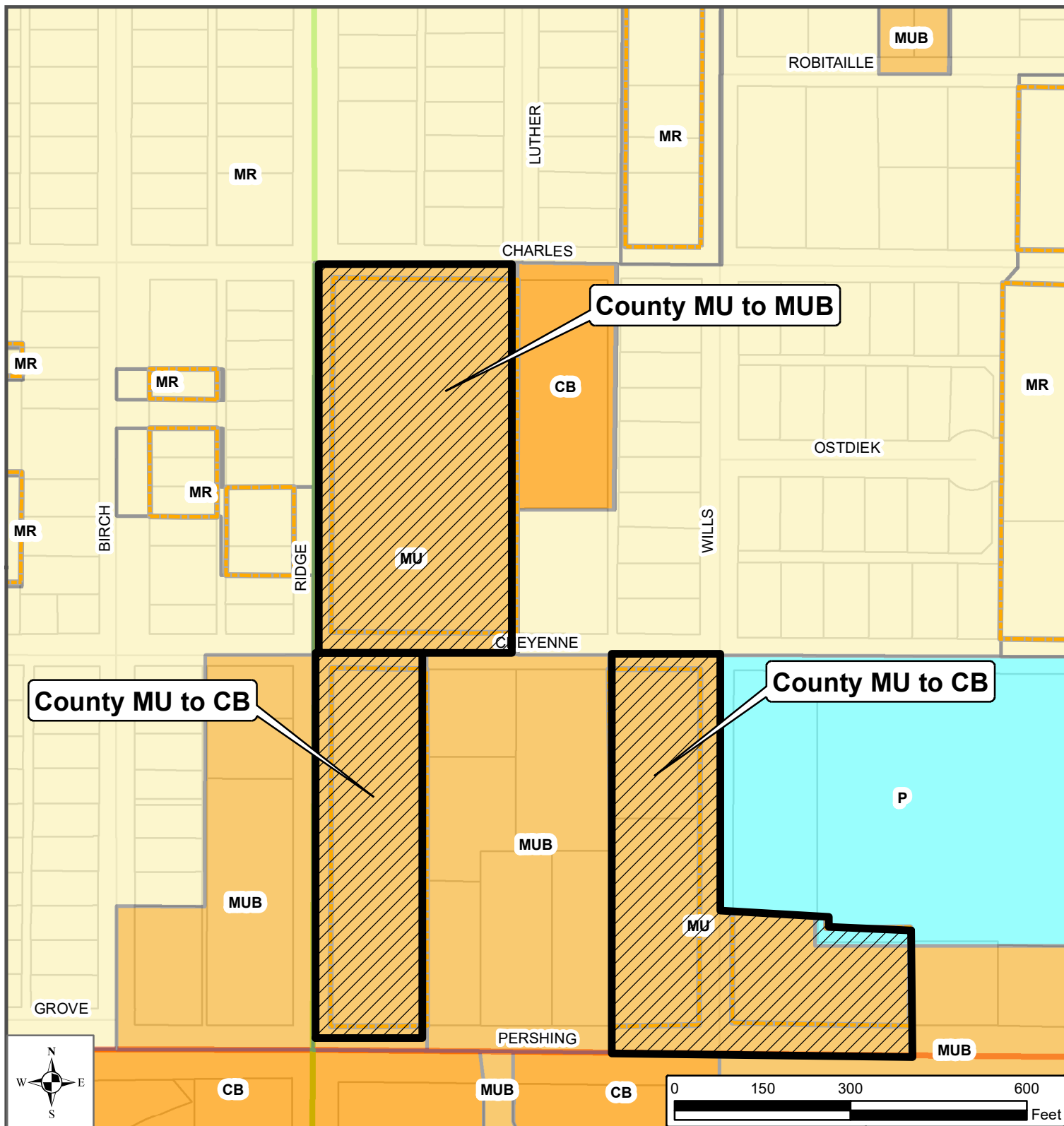
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



Zone Change Map

County MU (Mixed Use) to CB (Community Business) and MUB (Mixed-use Business)

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- City Limits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential
- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt



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CITY OF CHEYENNE PLANNING COMMISSION

FEBRUARY 6, 2023

STAFF REPORT

FILE: UDC-23-00016: County Pocket #1 Annexation – Zoning Map Amendment

REQUEST: City-initiated rezoning of approximately 9.87 acres of land from County Mixed Use zoning district to CB (Community Business) zoning district, concurrent with a City-initiated annexation

LOCATION: Five parcels generally located north of Pershing Boulevard, south of Charles Street, east of Ridge Road, and west of McCann Avenue.

APPLICANT: City of Cheyenne

OWNER: Zola Mae Hedrick, Big Paws Lawn Care LLC, Duane Thomas et ux, and Wells Fargo Bank

ZONING: County Mixed Use (MU)

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: To establish a City zoning district concurrent with annexation

PREPARED BY: Charles Bloom, AICP, Planning and Development Director

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the rezoning of Tract 13, Sunnyside Addition, Tracts 3 and 4, Sunny Side Addition, Tract 16, Sunny Side Addition, and a portion of Tract 17, Sunnyside Addition Second Filing to CB (Community Business) zoning district as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne
- City Council 2022 Goal: Annexation of County Pockets



BACKGROUND:

This zoning map amendment is City-initiated in conjunction with a City-initiated annexation under Wyo. Stat. § 15-1-404. City zoning districts are established in conjunction with annexation typically to support a proposed development. Because this is a City-initiated annexation staff has evaluated the development pattern of the area, sought input from landowners, and utilized PlanCheyenne's Future Land Use Plan to determine an appropriate zoning district for the area.

This application proposes to change the zoning from County Mixed Use (MU) zoning district to City Community Business (CB) zoning district. The properties are currently developed in various manners including residential, outdoor storage, and retail and the lot on the southwest corner of Cheyenne Street and Wills Road is vacant. The proposed Community Business (CB) zoning allows variety of commercial uses.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Parcels	Mixed-Use Commercial	County Mixed Use (MU)	Variety of uses including vacant, commercial, single family residential, outdoor storage, and financial services
North	Urban Residential	MR (Medium Density Residential), MUB (Mixed Use Business), and P (Public)	Primarily single family detached residential
South	Mixed-Use Commercial	MUB (Mixed Use Business) and CB (Community Business)	Primarily commercial services and partly vacant
East	Urban Residential	MUB (Mixed Use Business), CB (Community Business), and P (Public)	Primarily residential, an elementary school, and commercial businesses along Pershing Boulevard.
West	Urban Residential, Public, and Mixed-Use Commercial	MR (Medium Density Residential) and MUB (Mixed Use Business)	Single-family residential and commercial businesses

One property owner (West side of Ridge Road between Charles and Cheyenne Streets) has indicated that they may desire Mixed-use Business (MUB). Discussion is continuing with that property owner, and if they request MUB zoning, staff will present separate rezoning request to the Planning Commission for review and recommendation.

The lot on the southwest corner of Cheyenne Street and Wills Road presently under a County Site Plan Review for establishment of a landscaping business that proposes development of an equipment storage yard and equipment building with an office. Staff has been in communication with the County Planning Office regarding this proposal and intends to recognize the approved site plan as a non-conforming use to allow development to occur in compliance with the approval. This will be a non-conforming use subject to the nonconforming use provisions of the Unified Development Code (UDC § 1.3.6). in the event a nonconforming use wished to change, expand, or intensify approvals may be granted by the Board of Adjustment through Conditional Use approval pursuant to UDC § 1.3.6.c.1.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary and in an area with existing infrastructure. All adjacent infrastructure (roads and utilities) is within and maintained by the City.

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. PlanCheyenne also encourages infill development (although it is not the intent of the plan to change existing, stable neighborhoods). Zoning of this land concurrent with a City-initiated annexation, removes future obstacles towards development in the future.

The Future Land Use designation for this property is Mixed-use Commercial. Areas to the west and south are also designated Mixed-use Commercial. According to comprehensive plan the optimal City zone for the subject property's future land use designation of Mixed-use Commercial is MUB. However, CB zoning provides for commercial development and is generally encouraged near activity centers.

Based on the policies and future land use map, CB Community Business zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

These properties and surrounding properties are developed with a variety of uses with mixed-use zoning designations (See Surrounding Land Use And Zoning section above). These properties have developed with a variety of commercial uses within the County, some in accordance with the present County MU (Mixed Use) zoning and others likely prior to the establishment of County MU zoning in the area. A few of the properties are underdeveloped and lend themselves to future redevelopment. Any redevelopment timeline would be initiated by the landowners on their own timeline. Redevelopment of these properties would require adherence to City development standards, including landscaping and buffer yards, which are intended to provide compatibility with adjacent uses. The proposed CB zoning would be compatible with the development patterns in the vicinity.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The current zoning is a County zone and a City zone is required to develop within City limits. The City zone most analogous to the current County MU zone is the City CB zone. The CB zone is intended for more automobile-centric development. This location along two major thoroughfares is more likely to lead to develop with commercial-style uses similar to those in the surrounding area.

Neither the City CB or MUB (Mixed-use Business) zone districts permit outdoor storage as a principal use, existing outdoor storage (active and entitled through a County Site Plan approval) would be allowed to continue as nonconforming uses (UDC § 1.3.6).

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

Article 4 of the Unified Development Code (UDC) provides standards for coordinating development across different areas and over time. It addresses development patterns and includes planning, design, and engineering standards for systems that coordinate development across large areas, including open space, transportation, and utilities.

The subject properties are located on platted lands and surrounded by existing development. Development of the subject properties could conform to majority of standards within Article 4 of the Unified Development Code. In the event the requirements are impracticable or are impossible, avenues for administrative waivers do exist.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB zone is intended for larger commercial uses serving the community as a whole and is applicable in activity centers. Internal circulation between adjacent sites is encouraged. The CB zone applies commercial design standards. Higher intensity uses are appropriate near major transportation corridors.

The proposed zone change for the subject property largely **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

There is no specified development proposed in concert with this rezoning. A variety of commercial uses could develop at the location in accordance with applicable development standards.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the comprehensive plan and context of the property.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

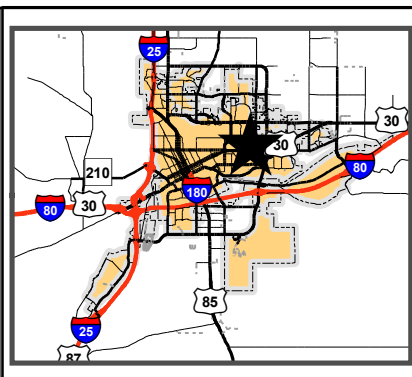
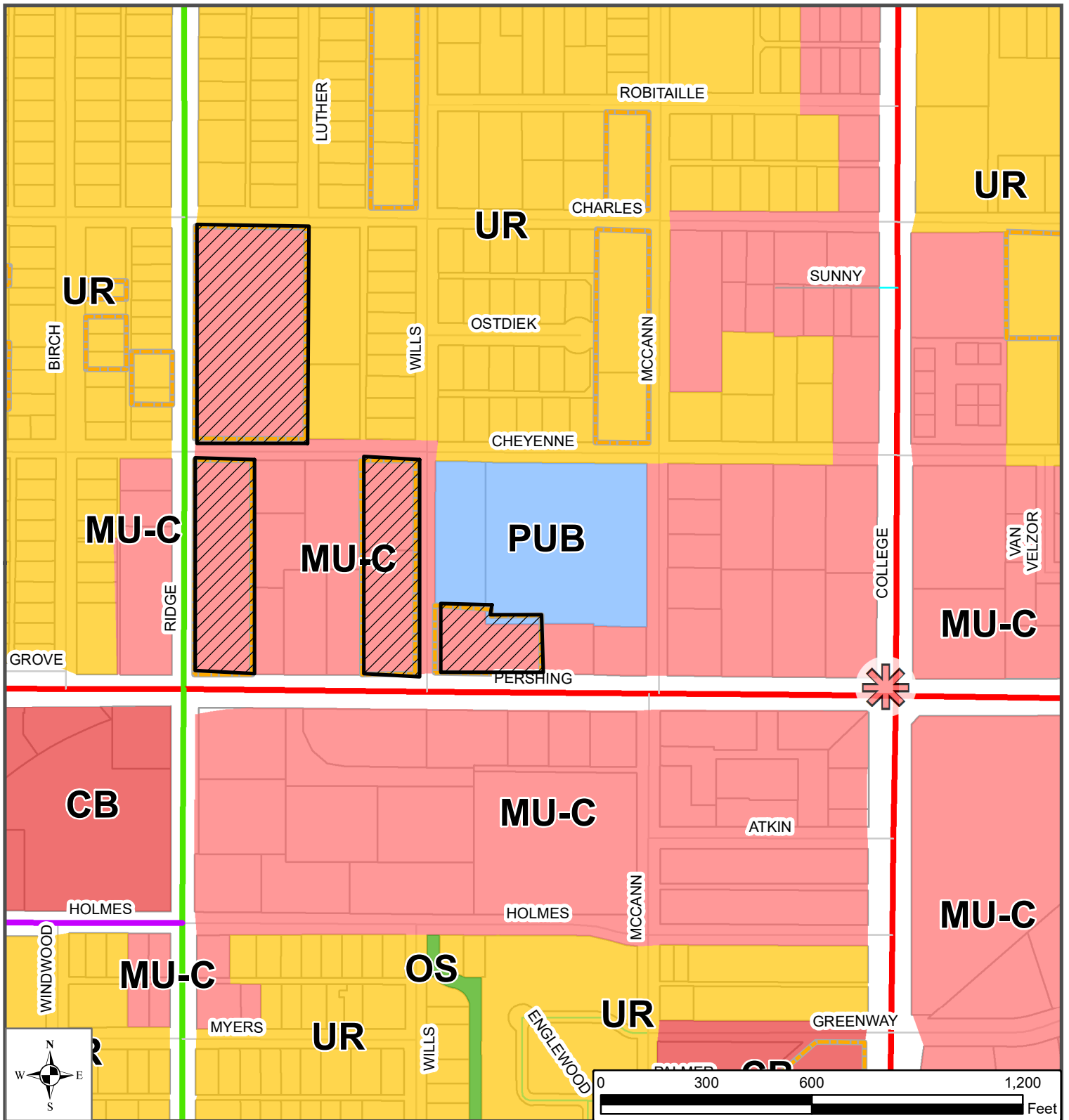
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval approve the rezoning of Tract 13, Sunnyside Addition, Tracts 3 and 4, Sunny Side Addition, Tract 16, Sunny Side Addition, and a portion of Tract 17, Sunnyside Addition Second Filing to CB (Community Business) zoning district.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Zone Change Map



Attachment 2: Land Use Map UDC-23-00016

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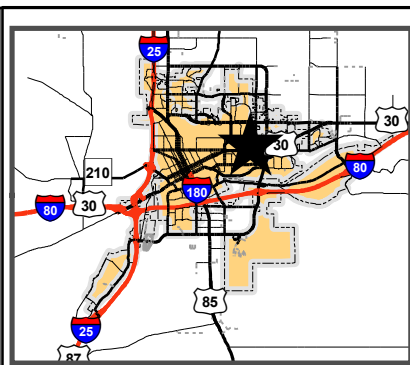
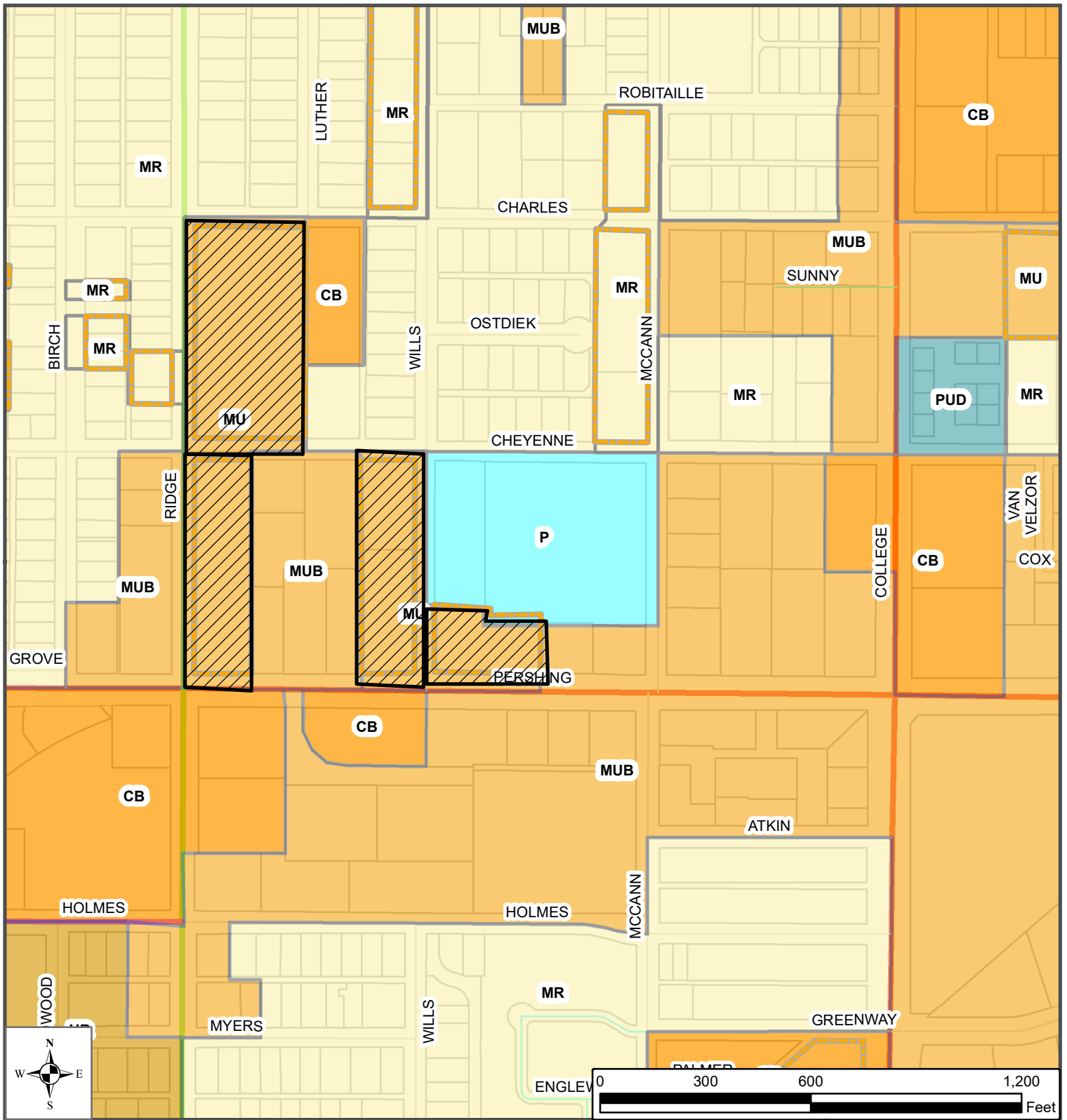
Legend

- City Limits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built

- Subject Properties

- Agriculture/Rural (AG)
- Rural Residential (RR)
- Urban Transition Residential (UTR)
- Urban Residential (UR)
- Mixed-use Residential (MUR)
- Mixed-use Commercial (MUC)
- Mixed-use Employment (MUE)
- Industrial (I)
- Central Business District (CBD)
- Community Business (CB)
- Public and Quasi-Public (P)
- Military/Federal (M)
- Open Space and Parks (OS)

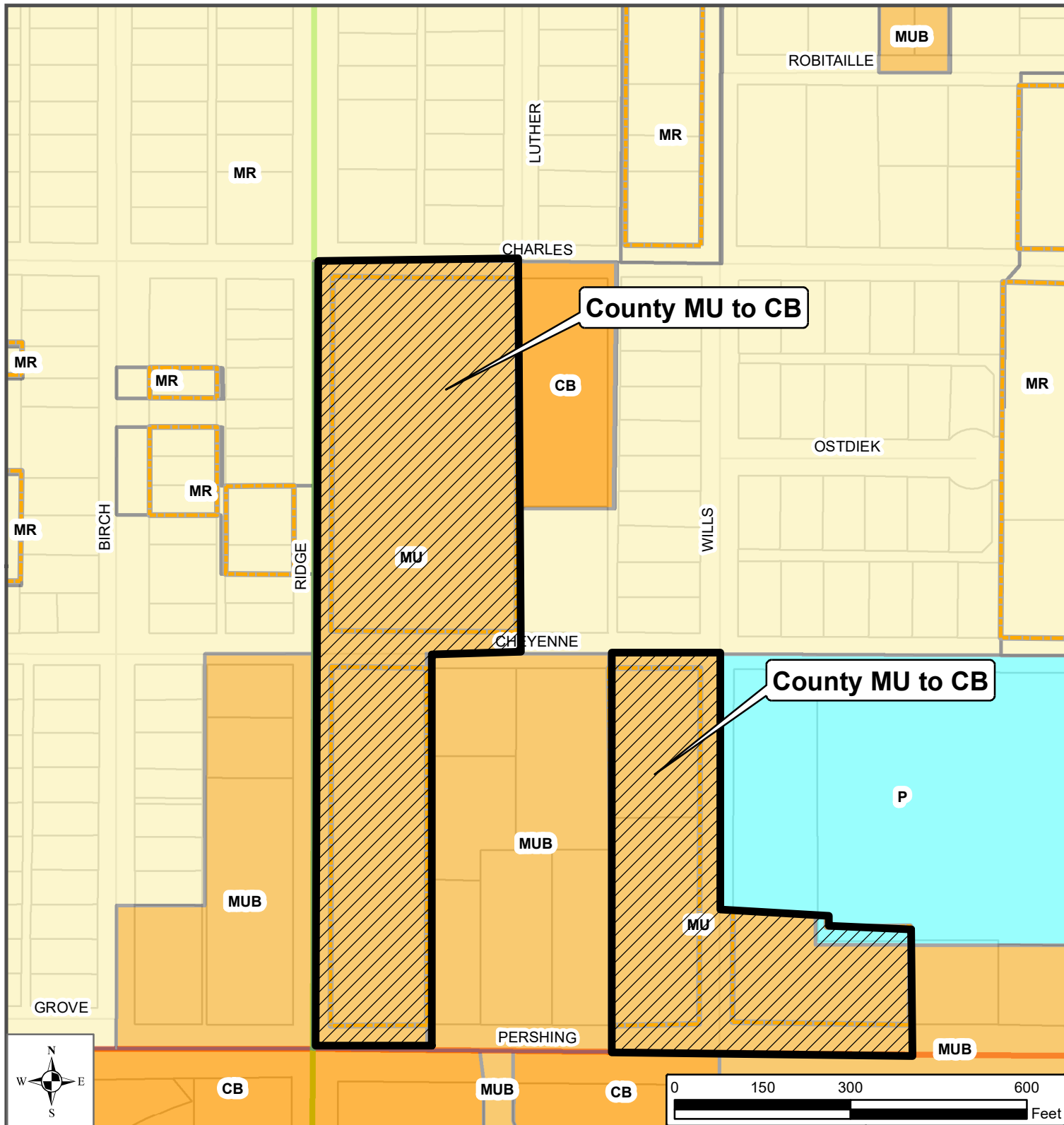
- Mixed-Use Commercial Activity Center
- Community/Regional Activity Center
- Community Park Site
- Highway Corridor Gateway
- Urban Service Boundary
- Natural/Cultural Resource Area
- State Lands



Attachment 1: Zoning Map UDC-23-00016

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Legend	
	City Limits
	Interstate
	Principal Arterial
	Minor Arterial
	Major Collector
	Minor Collector
	Local
	Private
	Platted not built
	Subject Properties
	HR / High Density Residential
	MR / Medium Density Residential
	LR / Low Density Residential
	NR-2 / Neighborhood Residential - Med. Density
	NR-3 / Neighborhood Residential - High Density
	AR / Agricultural Residential
	A-1 / Agricultural and Rural Residential
	A-2 / Agricultural
	AG / City Agricultural
	MUR / Mixed Use Residential Emphasis
	CBD / Central Business District
	CB / Community Business
	NB / Neighborhood Business
	MU / Mixed Use - County
	MUB / Mixed Use Business Emphasis
	MUE / Mixed Use Employment Emphasis
	HI / Heavy Industrial
	LI / Light Industrial
	P / Public
	AD / Airport District
	PUD / Planned Unit Development
	X / Exempt



Zone Change Map

County MU (Mixed Use) to CB (Community Business)

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Legend

City Limits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



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CITY OF CHEYENNE PLANNING COMMISSION FEBRUARY 21, 2023

STAFF REPORT

FILE: UDC-23-00016-01: County Pocket #1 Annexation – Zoning Map Amendment Revised Tracts 3 and 4

REQUEST: City-initiated rezoning of approximately 4.07 acres of land from County Mixed Use zoning district to MUB (Mixed Use Business) zoning district, concurrent with a City-initiated annexation

LOCATION: One parcel generally located east of Ridge Road between Charles and Cheyenne Streets.

APPLICANT: City of Cheyenne

OWNER: Zola Mae Hedrick

ZONING: County Mixed Use (MU)

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: To establish a City zoning district concurrent with annexation

PREPARED BY: Charles Bloom, AICP, Planning and Development Director

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the rezoning of Tract 13, Sunnyside Addition, Tracts 3 and 4 to MUB (Mixed Use Business) zoning district as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne
- City Council 2022 Goal: Annexation of County Pockets



BACKGROUND:

This zoning map amendment is City-initiated in conjunction with a City-initiated annexation under Wyo. Stat. § 15-1-404. City zoning districts are established in conjunction with annexation typically to support a proposed development. Because this is a City-initiated annexation staff has evaluated the development pattern of the area, sought input from landowners, and utilized PlanCheyenne's Future Land Use Plan to determine an appropriate zoning district for the area.

This property owner has requested the MUB zoning to allow for a less auto-centric development style at this location. This recommendation will be presented in conjunction with the zoning recommendation considered by the Planning Commission on February 6, 2023 as part of the County Pocket #1 Annexation.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Parcel	Mixed-Use Commercial	County Mixed Use (MU)	Variety of uses including commercial, single family residential, and outdoor storage
North	Urban Residential	MR (Medium Density Residential), MUB (Mixed Use Business), and P (Public)	Primarily single family detached residential
South	Mixed-Use Commercial	MUB (Mixed Use Business) and CB (Community Business)	Primarily commercial services and partly vacant
East	Urban Residential	MR (Medium Density Residential) CB (Community Business)	Primarily residential, commercial
West	Urban Residential, Public, and Mixed-Use Commercial	MR (Medium Density Residential) and MUB (Mixed Use Business)	Single-family residential and commercial businesses

The property is currently developed in various manners including residential, outdoor storage, and retail. The proposed Mixed-Use Business (MUB) zoning allows variety of commercial uses as well as multifamily uses in a more urban context.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary and in an area with existing infrastructure. All adjacent infrastructure (roads and utilities) is within and maintained by the City.

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. PlanCheyenne also encourages infill development (although it is not the intent of the plan to change existing, stable neighborhoods). Zoning of this land concurrent with a City-initiated annexation, removes future obstacles towards development in the future.

The Future Land Use designation for this property is Mixed-use Commercial. Areas to the west and south are also designated Mixed-use Commercial. According to comprehensive plan the optimal City zone for the subject property's future land use designation of Mixed-use Commercial is MUB.

Based on the policies and future land use map, MUB Mixed-use Business zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

These property and surrounding properties are developed with a variety of uses with mixed-use zoning designations (See Surrounding Land Use And Zoning section above). This property has developed with a variety of commercial uses within the County, some in accordance with the present County MU (Mixed Use) zoning and others likely prior to the establishment of County MU zoning in the area. This property is a candidate for redevelopment. Any redevelopment timeline would be initiated by the landowners on their own timeline. Redevelopment of these properties would require adherence to City development standards, including landscaping and buffer yards, which are intended to provide compatibility with adjacent uses. The proposed MUB Mixed-use Business zoning would be compatible with the development patterns in the vicinity.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current zoning is a County zone and a City zone is required to develop within City limits. The City zone most analogous to the current County MU zone is the City CB zone, however the MUB zone could result in redevelopment opportunities. The MUB Mixed-use Business zone is intended for more mixed-use and pedestrian oriented development.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Article 4 of the Unified Development Code (UDC) provides standards for coordinating development across different areas and over time. It addresses development patterns and includes planning, design, and engineering standards for systems that coordinate development across large areas, including open space, transportation, and utilities.

The subject properties are located on platted lands and surrounded by existing development. Development of the subject properties could conform to majority of standards within Article 4 of the Unified Development Code. In the event the requirements are impracticable or are impossible, avenues for administrative waivers do exist.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The MUB Mixed-use Business zone is intended for mixed-use development and uses serving the community as a whole and is applicable in activity centers. Pedestrian circulation between adjacent sites is encouraged. The MUB zone applies commercial design standards. Higher intensity mixed uses are appropriate near major transportation corridors.

The proposed zone change for the subject property largely **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

There is no specified development proposed in concert with this rezoning. A variety of commercial uses could develop at the location in accordance with applicable development standards.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The MUB zone is appropriate based on the comprehensive plan and context of the property.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

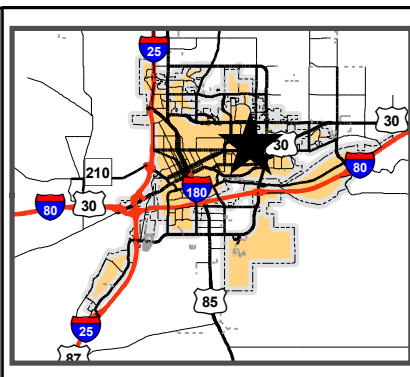
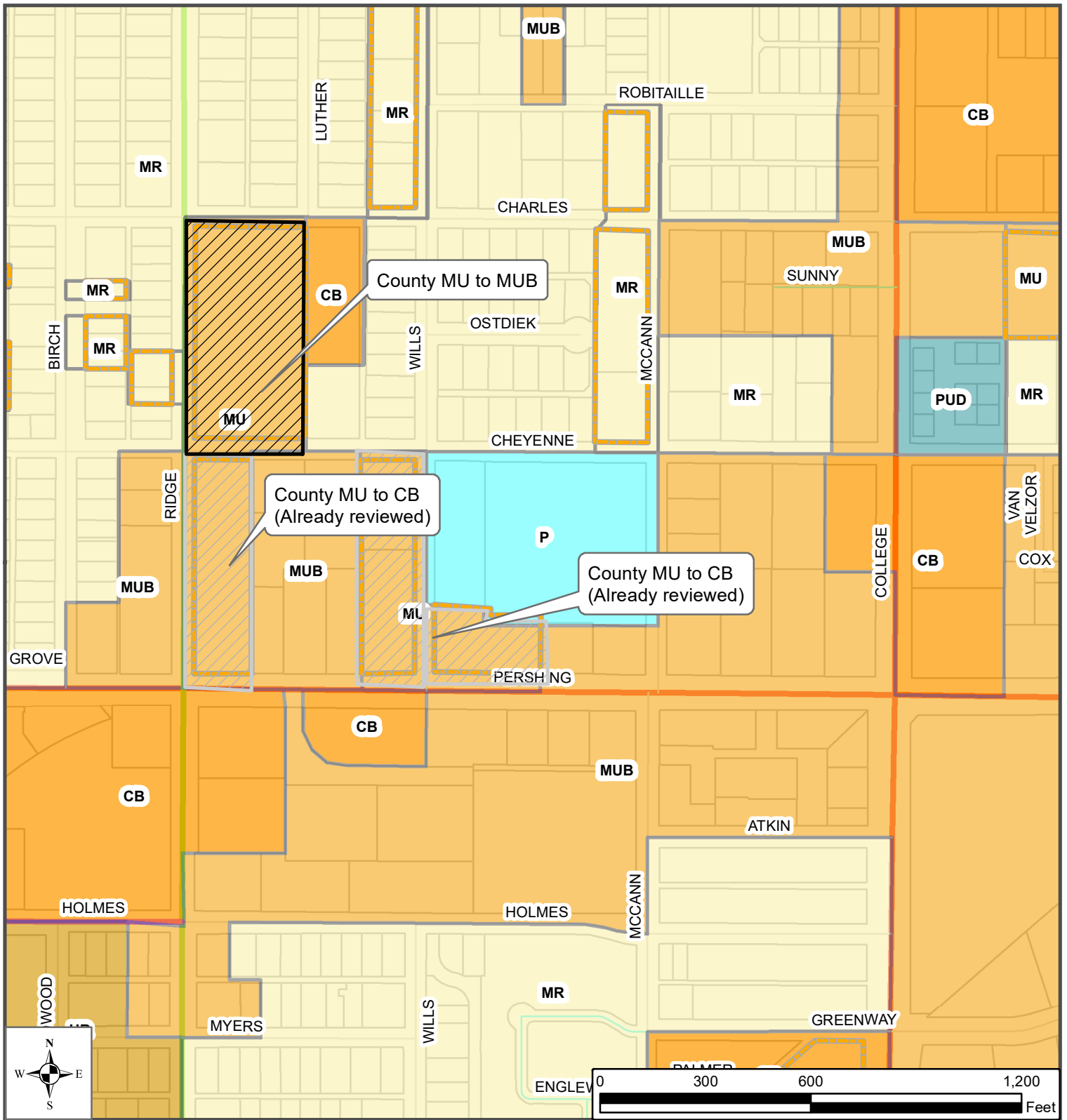
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval approve the rezoning of Tract 13, Sunnyside Addition, Tracts 3 and 4, Sunny Side Addition to MUB (Mixed-use Business) zoning district.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Zone Change Map Revised

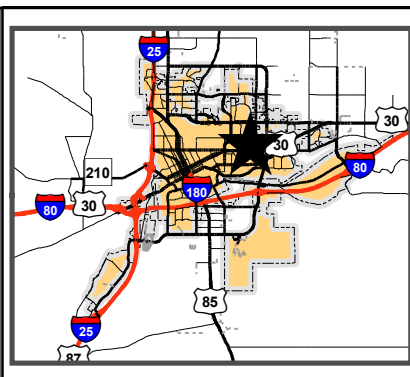
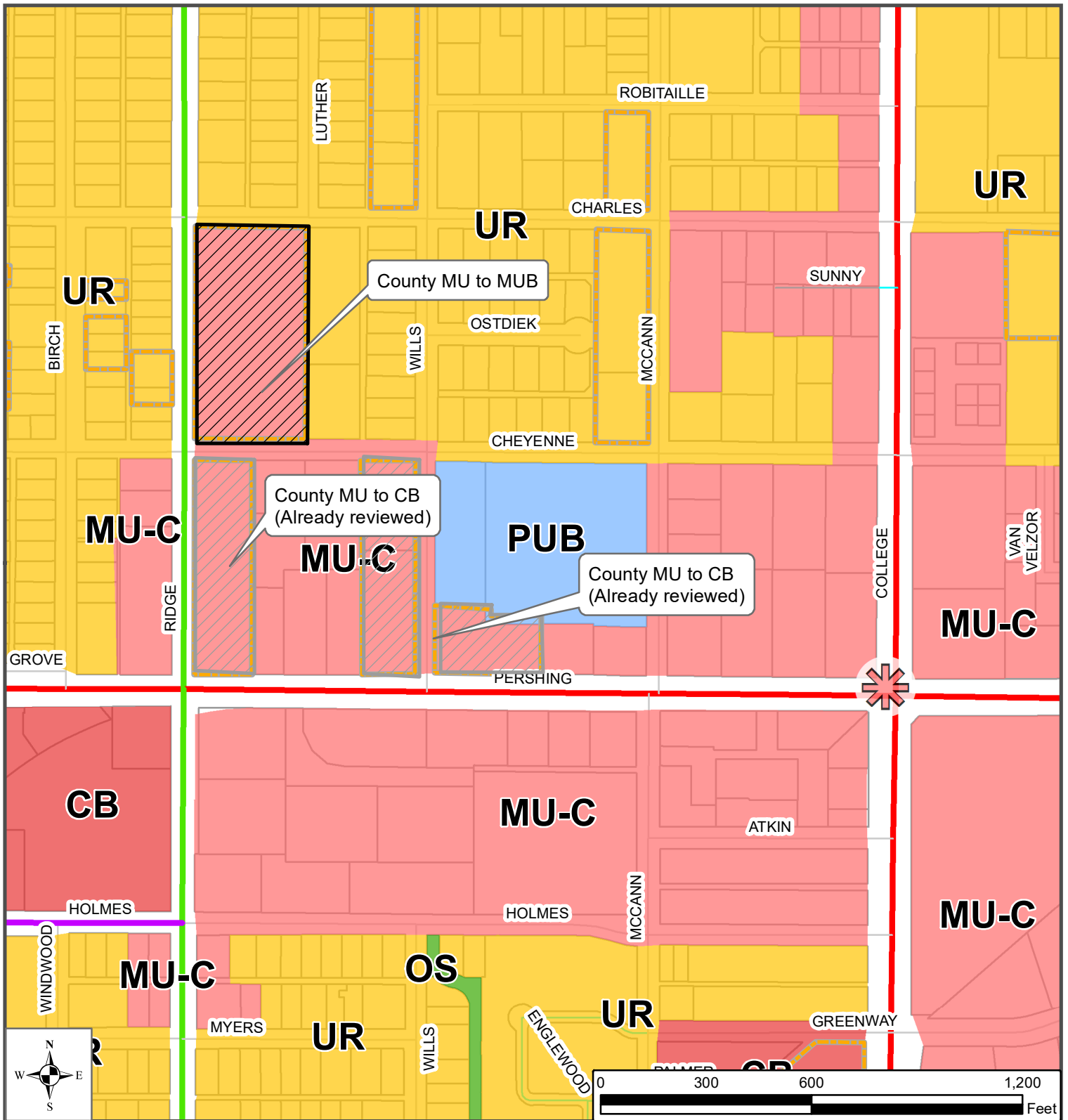


Attachment 1: Zoning Map UDC-23-00016-01

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Legend

City Limits	Subject Properties	A-1 / Agricultural and Rural Residential
Interstate		A-2 / Agricultural
Principal Arterial		AG / City Agricultural
Minor Arterial		MUR / Mixed Use Residential Emphasis
Major Collector		CBD / Central Business District
Minor Collector		CB / Community Business
Local		NB / Neighborhood Business
Private		MU / Mixed Use - County
Platted not built		MUB / Mixed Use Business Emphasis
HR / High Density Residential		MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential		HI / Heavy Industrial
LR / Low Density Residential		LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density		P / Public
NR-3 / Neighborhood Residential - High Density		AD / Airport District
AR / Agricultural Residential		PUD / Planned Unit Development
		X / Exempt

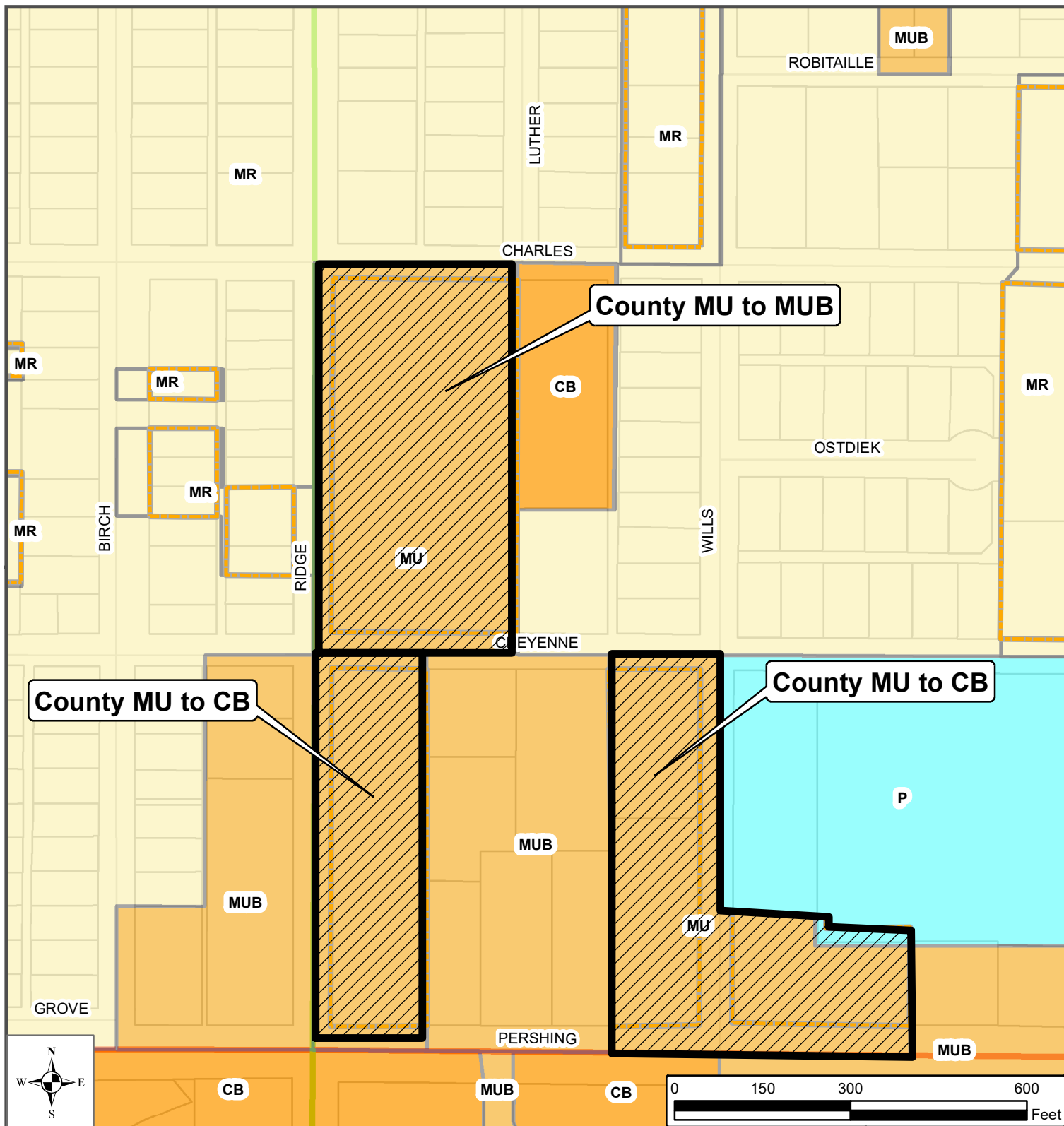


Attachment 2: Land Use Map UDC-23-00016-01

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Legend

- | | | |
|--------------------|------------------------------------|--------------------------------------|
| City Limits | Agriculture/Rural (AG) | Mixed-Use Commercial Activity Center |
| Interstate | Rural Residential (RR) | Community/Regional Activity Center |
| Principal Arterial | Urban Transition Residential (UTR) | Community Park Site |
| Minor Arterial | Urban Residential (UR) | Highway Corridor Gateway |
| Major Collector | Mixed-use Residential (MUR) | Urban Service Boundary |
| Minor Collector | Mixed-use Commercial (MUC) | Natural/Cultural Resource Area |
| Local | Mixed-use Employment (MUE) | State Lands |
| Private | Industrial (I) | |
| Platted not built | Central Business District (CBD) | |
| | Community Business (CB) | |
| | Public and Quasi-Public (P) | |
| | Military/Federal (M) | |
| | Open Space and Parks (OS) | |



Zone Change Map

County MU (Mixed Use) to CB (Community Business) and MUB (Mixed-use Business)

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Legend

	City Limits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt